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What to know about California's ban on four food additives

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Author: Eden Villalovas, Washington Examiner | Section: Nation World | 1720 Words
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California has become the first state in the nation to ban four food additives used in consumer goods, including those used in popular candy brands. The bipartisan bill is being praised by lawmakers and environmental groups, but the Food and Drug Administration says it could disrupt the food supply.

The California Food Safety Act prohibits the use of brominated vegetable oil, potassium bromate, propylparaben, and red dye 3 in foods and beverages sold and produced in the state.

TRUMP ELICITS FIERCE BIPARTISAN BACKLASH WITH ISRAEL AND HEZBOLLAH COMMENTS

The ban, Assembly Bill 418, was signed by Gov. Gavin Newsom (D-CA) on Oct. 7. Democratic Assemblymember Jesse Gabriel introduced the legislation earlier this year, and the California Legislature voted to pass the act in September. Environmental Working Group (EWG) and Consumer Reports co-sponsored A.B. 418. The law will go into effect on January 1, 2027, which lawmakers say was intended to give manufacturers time to alter their products.

In an interview with the Washington Examiner, Gabriel said he expects that "most of the industry" will "comply." He cited the delayed implementation date in a few years, which will give manufacturers "more than enough time" to "renegotiate contracts, adjust their supply chains," and "make modifications to their recipes."

Despite the widespread support in California, some have expressed concern about the cost and difficulty of reformulating their products, as well as pushing for science-based regulation, which the FDA has also pointed out.

Several groups, such as the North American Millers' Association, the National Confectioners Association, and the Consumer Brands Association, have opposed the bill and condemned California for signing it into law.

Sarah Gallo, the vice president of product policy at the Consumer Brands Association, said in a statement to the Washington Examiner that the ban "sets a dangerous precedent for circumventing our country's science and risk-based reviews that prioritize consumer health and safety."

The Vice President of Regulatory and Technical Affairs for the North American Millers' Association, Molly Miller, expressed similar sentiments to the Washington Examiner, stating, "Regulations should be science-based. By creating a patchwork of food ingredient bans without rigorous scientific review, AB 418 will bring consumer confusion and new challenges for businesses that operate across state lines."

The Democratic lawmaker is confident the bill will take effect in 2027 despite pushback from a few groups, saying as legislation moved forward, lawmakers "incorporated a lot of feedback from various industry stakeholders." Gabriel added that multiple major business groups that initially disapproved of the legislation changed their stance after legislators heard their concerns.

Significant industry players dropped their initial opposition to the bill, including the California Business Roundtable and California Chamber of Commerce. Both groups rescinded their opposition after titanium dioxide was removed from the list of chemicals that lawmakers intended to ban.

The FDA said California's ban could disrupt food supply and create higher prices on some consumer goods.

"It is important that scientific information and data are considered when making changes that could impact the food

supply, such as a state-initiated ban of ingredients in food," an FDA spokesperson told the Washington Examiner.

"Chemicals in food are regulated at the national level by the FDA, which takes a science-based approach to ensure the safety of chemicals used in the food supply. Such actions could potentially disrupt the food supply, leading to less product availability and/or higher prices," the FDA added.

In response, Gabriel said, "I think it's total garbage on multiple levels. We have met extensively with industry groups and with opposition – there is not a single industry group or manufacturer of a product that ever once told us that they thought a product would come off the shelf. So if the FDA is purporting to speak on behalf of the industry, that is not something that anybody in the industry ever said to us."

The Democratic assemblyman questioned the FDA's concerns about potential disruptions to the food supply, stating the products are still available across Europe and other countries with modified recipes.

"What they're saying is just absolutely false," Gabriel said.

The agency expressed their "science-based FDA approach" overseeing the food system is the most consistent and best way to ensure safety to monitor food products across the United States.

Gabriel said he agrees with the FDA's suggestion to follow the science, but he pointed out what he saw as a major problem in the FDA's process, stating, "They don't go back and rereview things as new evidence arises," and "our understanding of science and human physiology changes."

Some of the additives California banned have been under limited oversight from the FDA, with the EWG saying potassium bromate has not been under formal review since 1973. Other federal government agencies re-review products more frequently, such as the Environmental Protection Agency. For example, the EPA "reviews each registered pesticide at least every 15 years" to ensure no "unreasonable adverse effects to human health and the environment."

"The EPA and others go back and rereview things more frequently," Gabriel said. "So we have some of these chemicals that people haven't looked at in 50 years. And as all this new science has come out, it hasn't impacted the FDA."

"So I can understand why they're feeling defensive and sensitive, but that's because they are totally asleep at the switch and have frankly done a terrible job of protecting consumers in the United States of America from dangerous food chemicals," Gabriel added.

Continuing their statement to the Washington Examiner, the FDA spokesperson said the agency does reassess "the safety of food ingredients as new, relevant data become available."

"The FDA has a program to continually review the impact of new data for food chemicals, including the four chemicals in AB-418," the spokesperson said. "Based on our review of new data, the FDA is working on a proposed rule to amend our regulations to remove the authorization of the use of brominated vegetable oil (BVO) as a food ingredient."

Gabriel said he is hopeful the California Food Safety Act will "provide some momentum to have a much more robust conversation at the federal level."

Below is a breakdown of where these additives are found in the U.S. and how the FDA ranks them versus The Environmental Working Group (EWG).

The ban is based on growing concerns about the potential health hazards of these chemical additives. All four are already prohibited by the European Union and a number of other countries.

Brominated vegetable oil

The United Kingdom banned brominated vegetable oil (BVO) over five decades ago, with the European Union following and, most recently, Japan. BVO is used as an emulsifier, keeping citrus-flavored soft drinks from separating by using vegetable oil combined with chemical bromine bonded to the oil.

The FDA has said BVO can not exceed 15 parts per million in beverages. The agency said they are continuing to evaluate the oil amid growing concerns, writing in 2022, "We have identified areas where additional information about possible health effects is needed and are working to obtain this information, including through ongoing FDA-NIEHS research."

"Over the years, many beverage makers have reformulated their products to replace BVO with an alternative ingredient. Today, few beverages in the U.S. contain BVO," the FDA says.

Brands like Coca-Cola, PepsiCo, Mountain Dew, and Gatorade have removed BVO from their ingredients in recent years. A decade ago, BVO could be found in 10% of all soft drinks in the U.S., according to Scientific American. While that number has likely varied over the years, the product is still used only in the United States and Canada.

The EWG said BVO is of high concern, citing a peer-reviewed study that found the substance can cause neurological problems, and a study conducted on rats showed negative thyroid effects.

Potassium bromate

Several countries, including Brazil, Canada, China, and India, have all banned potassium bromate for use in food. Potassium bromate can be used to strengthen flour and help dough rise, meaning it's found in many packaged baked goods, such as bread and pastries.

The FDA says potassium bromate can't go over more than 0.0075 parts for every 100 parts by weight of flour used. In 1999, the International Agency for Research on Cancer classified potassium bromate as potentially carcinogenic to humans, which the EWG cites in their reasoning to classify the chemical as a high-concern substance.

The EWG also cites a study from the California Office of Environmental Health Hazard Assessment, which says that potassium bromate is "known to cause cancer."

Propylparaben

In 2006, the European Food Safety Authority banned the use of propylparaben in food and banned it from cosmetic products in 2015. In the U.S., propylparaben is used as a preservative and can be found in baked goods, tortillas, cake icing, some trail mixes, and more.

The FDA says propylparaben is "generally recognized as safe for use at a level not exceeding 0.1 percent in accordance with good manufacturing or feeding practice." The agency "allows single or multiple parabens to be added to food or food packaging as antimicrobials to prevent food spoilage."

The EWG says propylparaben is "of higher concern in food," citing an EU study of animals with evidence that propylparaben disrupts the endocrine system, possibly resulting in reproductive disorders and increasing the risk of cancer. "European Food Safety Authority reports this substance causes reproductive effects in animals," the group says.

Red dye No. 3

In 1990, the FDA banned the use of Red dye No. 3 in cosmetics, but it remains permitted in food products. The dye is used in many popular candies, such as Skittles, Nerds, some boxed cake mixes, and other sweets. The European Food Safety Authority banned edible use of red dye no. 3 in 2008, but some uses permit the additive in cocktails

and candied cherries.

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The FDA permits the colored synthetic dye to be used in food and ingested drugs but states it can "no longer be used in cosmetics, external drugs, and lakes."

According to the EWG, red dye No. 3 is present in over 2,000 products, mostly to make candy appear more colorful. The EWG lists a number of factors when ranking the chemical of high concern, citing the FDA declaring this substance to be an animal carcinogen, causing tumors in rats. The group linked a report from the Office of Environmental Health Hazard Assessment, stating "synthetic food dyes are associated with adverse neurobehavioral outcomes in children."

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